

TERMS AND CONDITIONS

Mom's Kitchen — Smart Kid Meals Application

Effective Date	May 01, 2026
Last Updated	May 01, 2026
App Name	Mom's Kitchen (Smart Kid Meals)
Developer	[Your Company Name] / [Developer Name]
Contact Email	legal@momskitchen.app
Governing Law	Laws of India (Information Technology Act 2000, Consumer Protection Act 2019)

**IMPORTANT NOTICE — PLEASE
READ CAREFULLY**

By downloading, installing, or using the Mom's Kitchen app, you agree to be bound by these Terms and Conditions. If you do not agree to these terms, do not use the App. These terms include important disclaimers regarding AI-generated nutrition content and limitations of liability.

1. Acceptance of Terms

These Terms and Conditions ("Terms") govern your use of the Mom's Kitchen mobile application ("App") developed by [Developer Name/Company] ("we," "us," or "our"). By creating an account or using the App, you confirm that:

- You are at least 18 years of age, OR a parent/legal guardian of the child(ren) for whom you are creating profiles
- You have the legal authority to enter into these Terms
- You have read, understood, and agree to be bound by these Terms and our Privacy Policy
- You will use the App only for lawful purposes and in accordance with these Terms

2. Description of Service

Mom's Kitchen is an AI-powered meal recommendation and child nutrition tracking application. The App provides:

- AI-generated meal recipes personalized to a child's age, dietary preferences, and health goals
- Weekly meal planning and scheduling tools
- Water and hydration tracking for children
- Growth monitoring and analytics (height and weight tracking)
- AI-generated healthy drink recipes
- Grocery list generation based on meal plans
- Child profile management for multiple children

The App uses Google's Gemini AI to generate meal content. AI-generated content is created programmatically and has not been individually reviewed by a human nutritionist or medical professional.

3. CRITICAL DISCLAIMER — NOT MEDICAL OR NUTRITIONAL ADVICE

THE INFORMATION AND MEAL RECOMMENDATIONS PROVIDED BY THIS APP ARE FOR GENERAL INFORMATIONAL AND EDUCATIONAL PURPOSES ONLY. THIS APP IS NOT A MEDICAL DEVICE AND DOES NOT PROVIDE MEDICAL, NUTRITIONAL, OR DIETARY ADVICE.

Specifically:

3.1 AI Limitations: Meal recommendations are generated by artificial intelligence based on general parameters. The AI may occasionally make errors, produce recipes with ingredients that conflict with declared allergies, or provide nutritional estimates that are not precisely accurate.

3.2 No Medical Relationship: Use of this App does not create a doctor-patient, dietitian-patient, or any professional health relationship between you and the App developer.

3.3 Allergy Caution: While the App attempts to exclude declared allergens, **YOU MUST INDEPENDENTLY VERIFY ALL INGREDIENTS BEFORE PREPARING OR SERVING ANY MEAL TO YOUR CHILD.** The App is not a substitute for reading food labels and consulting with your child's allergist or pediatrician.

3.4 Consult Professionals: For children with specific medical conditions, nutritional deficiencies, food allergies, or eating disorders, **ALWAYS** consult a licensed pediatrician, dietitian, or specialist before making dietary changes based on App recommendations.

3.5 Growth Data: Growth charts and analytics are for reference only and are not a substitute for professional medical evaluation. Abnormal growth patterns should be evaluated by a qualified healthcare provider.

BY USING THIS APP, YOU ACKNOWLEDGE AND ACCEPT THESE LIMITATIONS.

4. Account Registration & Security

4.1 Account Creation: You must create an account to save child profiles and access personalized features. You agree to provide accurate, complete, and current information during registration.

4.2 Account Security: You are responsible for maintaining the confidentiality of your account credentials. You agree to immediately notify us at support@momskitchen.app if you suspect unauthorized access to your account.

4.3 One Account Per User: Each person may maintain only one active account. Creating multiple accounts to circumvent usage limits is prohibited.

4.4 Account Deletion: You may delete your account at any time from within the App (Settings > Account > Delete Account). Account deletion is permanent and irreversible.

5. Subscription Plans & Payments

5.1 Free Plan: The App offers a free tier with limited AI meal generations per day and limited child profiles.

5.2 Pro Subscription: A paid Pro subscription is available offering unlimited generations, unlimited profiles, and additional features. Current pricing is displayed in the App at the time of purchase.

5.3 Payment Processing: All payments are processed through Google Play Billing. By subscribing, you agree to Google Play's Terms of Service and payment terms in addition to these Terms.

5.4 Billing Cycle: Pro subscriptions are billed monthly (or annually if applicable) in advance on the day of the month your subscription began.

5.5 Cancellation: You may cancel your subscription at any time through the Google Play Store. Cancellation takes effect at the end of the current billing period. No refunds are provided for partial subscription periods, except as required by applicable law or Google Play's refund policy.

5.6 Price Changes: We reserve the right to change subscription prices. We will notify you at least 30 days in advance of any price change affecting your active subscription.

5.7 Free Trials: If a free trial is offered, it will convert to a paid subscription at the end of the trial period unless cancelled before the trial ends.

6. Acceptable Use Policy

You agree to use the App only for lawful purposes. You must NOT:

- Use the App to generate, store, or share any content that is harmful, offensive, or illegal
- Attempt to reverse-engineer, decompile, or extract source code from the App
- Use automated tools, bots, or scripts to access the App in a way that circumvents rate limits
- Create fake or multiple accounts to bypass subscription limits
- Share your account credentials with others
- Use the App for any commercial purpose other than personal, family use
- Attempt to access other users' data or accounts
- Transmit any malware, viruses, or malicious code through the App
- Violate any applicable laws or regulations

Violation of this Acceptable Use Policy may result in immediate account suspension or termination.

7. Intellectual Property

7.1 Our Content: The App, including its design, code, AI system instructions, UI elements, and branding, is owned by [Developer Name/Company] and is protected by copyright, trademark, and other intellectual property laws.

7.2 AI-Generated Content License: Meal recipes, meal plans, and nutrition information generated by the AI for your use are provided to you under a personal, non-commercial license. You may save, print, and use these recipes for personal family use. You may not sell, redistribute, or commercially exploit AI-generated content from this App.

7.3 Your Content: Child profile information and preferences you enter remain your property. You grant us a limited license to use this data to operate and improve the App's personalization features, as described in our Privacy Policy.

7.4 Feedback: If you provide feedback or suggestions about the App, we may use such feedback without compensation or obligation to you.

8. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW:

8.1 The App is provided "AS IS" and "AS AVAILABLE" without warranties of any kind, express or implied, including warranties of merchantability, fitness for a particular purpose, or non-infringement.

8.2 We do not warrant that the App will be error-free, uninterrupted, or that AI-generated meal recommendations will be accurate, complete, or suitable for your child's specific needs.

8.3 IN NO EVENT SHALL WE BE LIABLE FOR: any indirect, incidental, special, consequential, or punitive damages; loss of data or profits; any health-related issues arising from following AI-generated meal recommendations without independent professional verification; any allergic reactions or adverse health effects from meals prepared using App recommendations; or any issues arising from reliance on App content without consulting a qualified healthcare professional.

8.4 Our total liability to you for any claim arising from use of the App shall not exceed the amount you paid for your subscription in the three months preceding the claim.

9. Indemnification

You agree to indemnify, defend, and hold harmless [Developer Name/Company], its officers, directors, employees, and agents from and against any claims, damages, obligations, losses, liabilities, costs, or debt arising from:

- Your use of and access to the App
- Your violation of these Terms
- Your violation of any third-party right, including intellectual property rights
- Any claim that content you submitted caused damage to a third party
- Any health-related claim arising from your preparation of meals using App recommendations without independent professional verification

10. Termination

10.1 Termination by You: You may stop using the App at any time and delete your account as described in Section 4.4.

10.2 Termination by Us: We reserve the right to suspend or terminate your account immediately, without notice, if you violate these Terms, engage in fraudulent activity, or for any other reason at our sole discretion.

10.3 Effect of Termination: Upon termination, your right to use the App ceases immediately. Sections 3 (Disclaimer), 7 (Intellectual Property), 8 (Limitation of Liability), and 9 (Indemnification) survive termination.

11. Governing Law & Dispute Resolution

11.1 Governing Law: These Terms shall be governed by and construed in accordance with the laws of India, specifically the Information Technology Act 2000, the Consumer Protection Act 2019, and the Digital Personal Data Protection Act 2023, without regard to conflict of law provisions.

11.2 Dispute Resolution: Any dispute arising from these Terms shall first be attempted to be resolved through good-faith negotiation. If unresolved within 30 days, disputes shall be submitted to arbitration under the Indian Arbitration and Conciliation Act, 1996.

11.3 Jurisdiction: For matters not subject to arbitration, you consent to exclusive jurisdiction in the courts of [Your City], India.

11.4 Consumer Rights: Nothing in these Terms limits your statutory rights as a consumer under the Consumer Protection Act 2019.

12. Changes to Terms

We reserve the right to modify these Terms at any time. We will provide notice of material changes by:

- Posting the updated Terms in the App with a new "Last Updated" date
- Sending an email notification to your registered email address for significant changes
- Displaying an in-app notification requiring acknowledgment for major changes

Your continued use of the App after the effective date of the updated Terms constitutes your acceptance. If you do not agree to the updated Terms, you must stop using the App.

13. Miscellaneous

13.1 Entire Agreement: These Terms, together with our Privacy Policy, constitute the entire agreement between you and us regarding the App.

13.2 Severability: If any provision of these Terms is found unenforceable, that provision shall be modified minimally to make it enforceable, and the remaining provisions shall remain in full force.

13.3 No Waiver: Our failure to enforce any provision of these Terms shall not be deemed a waiver of our right to enforce such provision in the future.

13.4 Assignment: You may not assign your rights under these Terms without our written consent. We may assign our rights without restriction.

13.5 Force Majeure: We shall not be liable for delays or failures in performance resulting from circumstances beyond our reasonable control, including network failures, AI provider outages, or government actions.

14. Contact Information

For any questions about these Terms and Conditions, please contact:

Legal inquiries: legal@momskitchen.app General support: support@momskitchen.app Privacy concerns: privacy@momskitchen.app

App: Mom's Kitchen — Smart Kid Meals Developer: [Your Name / Company Name] Registered Address: [Your Business Address] CIN / Company Registration: [If applicable]

Response time: We aim to respond to all legal inquiries within 15 business days.

These Terms and Conditions are effective as of May 01, 2026. Mom's Kitchen / Smart Kid Meals.